

# Kosqu Technolab

## Policy for Prevention, Prohibition and Redressal of Sexual Harassment at Workplace

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| <b>Policy Name:</b>    | Prevention of Sexual Harassment (POSH) Policy                                             |
| <b>Applicable Law:</b> | Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 |
| <b>Effective Date:</b> | [DD/MM/YYYY]                                                                              |
| <b>Last Reviewed:</b>  | [DD/MM/YYYY]                                                                              |
| <b>Owner:</b>          | Human Resources Department                                                                |

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### 1. Objective

Kosqu Technolab ("the Company") is committed to providing a safe, respectful and inclusive work environment for all employees. This policy has been formulated in compliance with the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 ("the POSH Act") and the rules made thereunder. The Company has a zero-tolerance approach towards any form of sexual harassment at the workplace.

### 2. Applicability

This policy applies to all employees of the Company, including permanent, temporary, contractual, probationary and trainee employees, as well as interns, consultants and third-party personnel (such as vendors, clients or visitors) engaging with the Company at any workplace or work-related location, including client sites, business travel, company-sponsored events, and virtual/remote working environments.

### 3. Definitions

#### 3.1 Sexual Harassment

Sexual harassment includes any one or more of the following unwelcome acts or behaviour (whether directly or by implication), namely:

- Physical contact and advances of a sexual nature;
- A demand or request for sexual favours;
- Sexually coloured remarks;
- Showing pornography or sexually explicit content;
- Any other unwelcome physical, verbal, non-verbal or online conduct of a sexual nature.

#### 3.2 Workplace

"Workplace" includes the Company's offices, client locations, any place visited by an employee during the course of employment (including transportation provided by the Company), and any virtual or digital space used for work-related communication, such as email, messaging platforms and video calls.

## 4. Internal Committee (IC)

In accordance with Section 4 of the POSH Act, the Company has constituted an Internal Committee ("IC") to receive and redress complaints of sexual harassment. The IC comprises the following members:

| Role                                      | Name / Designation   |
|-------------------------------------------|----------------------|
| Presiding Officer (Senior woman employee) | [Name, Designation]  |
| Member                                    | [Name, Designation]  |
| Member                                    | [Name, Designation]  |
| External Member (NGO / Legal expert)      | [Name, Organisation] |

At least half of the IC members shall be women, and the Presiding Officer shall be a woman employee at a senior level. The IC's contact details will be prominently displayed at the workplace and communicated to all employees.

## 5. Complaint Procedure

### 5.1 Filing a Complaint

An aggrieved employee may submit a written complaint to the IC within 3 months of the incident (extendable by the IC for reasons recorded in writing). Complaints may be submitted in person, by email to the IC, or through any designated reporting channel.

### 5.2 Conciliation (Optional)

At the request of the aggrieved employee, the IC may take steps to settle the matter through conciliation before initiating an inquiry, provided no monetary settlement is made the basis of such conciliation.

### 5.3 Inquiry

Where conciliation is not opted for or fails, the IC shall complete its inquiry within 90 days, following principles of natural justice and giving both parties a reasonable opportunity to be heard. The IC shall submit its inquiry report within 10 days of completing the inquiry.

### 5.4 Interim Relief

During the pendency of the inquiry, the IC may recommend interim measures such as transfer of either party, granting leave to the aggrieved employee, or restricting interaction between the parties.

### 5.5 Action on Report

The Company shall act on the IC's recommendations within 60 days of receipt of the report, which may include disciplinary action against the respondent, ranging from warning to termination of employment, in accordance with the Company's disciplinary policy and applicable service rules.

## 6. Confidentiality

The identity of the complainant, respondent, witnesses and details of the complaint, inquiry proceedings and recommendations shall be kept strictly confidential, as mandated under Section 16 of the POSH Act. Breach of confidentiality may attract disciplinary action.

## **7. Protection Against Retaliation**

The Company strictly prohibits retaliation against any employee who, in good faith, reports an incident of sexual harassment or participates in an inquiry as a complainant or witness. Any act of retaliation will be treated as a separate act of misconduct and dealt with accordingly.

## **8. False or Malicious Complaints**

Where the IC concludes that a complaint was false or malicious, or that false evidence was produced, it may recommend action against the person who made the complaint or produced false evidence, in accordance with Section 14 of the POSH Act. However, a complaint shall not be considered false merely because adequate evidence was not found to substantiate it.

## 9. Awareness and Training

- The Company will conduct regular awareness sessions and training programmes on this policy for all employees.
- IC members will be provided with relevant training to conduct inquiries in a fair and sensitive manner.
- This policy and IC contact details will be displayed at all workplace locations and included in employee onboarding.

## 10. Annual Report

The IC shall prepare an annual report and submit it to the employer and to the District Officer, as required under the POSH Act. The Company shall also include the number of cases filed and disposed of in its annual report, as applicable.

## 11. Review of Policy

This policy will be reviewed periodically to ensure continued compliance with applicable laws and to reflect best practices. Any amendments will be communicated to all employees.

## 12. Contact Details

Employees may reach the Internal Committee through the following channel(s):

- Email: [ic-posh@company-email.com]
- Presiding Officer: [Name] — [contact number / email]

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This document is a policy template based on the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013. Fields in brackets [ ] must be filled in with company-specific details before circulation. This is not a substitute for legal advice.